# Note-Taking Guide

*State of Minnesota v. Derek Chauvin* – focus: causation of death

The 10 essay earned its grade through analysis, not description: every observation was tied to a legal element, a participant's role, or a comparison with another system. Your notes should capture those links while you watch.

## Before you start (~30 min)

Read the **jury instructions**, especially the definition of causation ("substantial causal factor"). If you know the legal test, you'll notice which testimony actually matters for it.

## For every witness, note these five things

### 1. Facts and quotes (with timestamp)

- Who testified, on which date, and who called them (prosecution or defence).
- **One or two short, exact quotes** with the minute (e.g. "Tobin, 8 Apr, 1:23:10: *'that's the moment the life goes out of his body'*"). Two or three good quotes in the whole essay are enough.

### 2. Which element it proves

- What does this testimony say about **causation**? Does it support "substantial causal factor" (prosecution) or point to other causes: drugs, heart disease, carbon monoxide (defence)?

### 3. How the evidence enters the courtroom (the "taking of evidence" itself)

This is the heart of your assignment, and most students miss it. Watch for:

- **Qualifying the expert:** at the start, the lawyer asks about the expert's CV (education, experience) to show they can be trusted.
- **Direct versus cross-examination:** open questions from the side that called the witness; short, leading questions (questions that suggest the answer) from the other side.
- **Objections:** a lawyer says "Objection!" and the judge rules "sustained" (upheld) or "overruled" (rejected). Note how often this happens and why.
- **Exhibits:** video clips, diagrams or graphs shown during testimony. How is the video used, and *who* interprets it for the jury?
- **Payment:** whether the expert says they're being paid, and who pays them – useful for your point about neutrality.

### 4. The role of each participant

- **Judge:** does he ask questions himself, or only rule on objections? (Mostly passive in Chauvin – a key contrast with continental judges.)
- **Prosecutor and defence lawyer:** who chooses the witnesses, and who controls the questions?
- **Jury:** do jurors ask questions? How are they addressed? Notice how complex the medical language is for lay people.
- **Defendant:** what does Chauvin do while the witnesses testify? He doesn't speak (his right not to testify).

### 5. Comparison and critique: mark these with "C:" and "?"

Whenever you think "this would be different in Portugal or the Netherlands", write **C:** in the margin. Whenever you see a possible weakness, write **?**. For example:

- *C: here each party brings its own expert; in Portugal the court appoints the expert (art. 151 ff. CPP).*
- *?: can lay jurors really choose between two medical experts who contradict each other?*
- *?: Baker helps both sides under cross-examination. Is that a strength of the adversarial system, because the truth comes out, or a sign of confusion?*

- *C: the jury will give no reasons; a continental judge must justify why they follow one expert over another.*

These margin notes will become the analysis section, which is where the 10 is earned.

## Special points per video

| Video | Pay extra attention to |
|---|---|
| Openings | How each side tells a *story* of causation, before any evidence is heard |
| Tobin | How he uses the **video** as a basis for medical conclusions: the video's meaning depends on the expert interpreting it |
| Baker | How the **cross-examination** gets concessions from the prosecution's own witness (the airway, fentanyl “in other circumstances”) |
| Fowler | How the prosecutor **attacks the credibility** of a defence expert (carbon monoxide without a blood test) |
| Tobin rebuttal | The prosecution gets the “last word” on the evidence; compare with continental procedure |
| Closings | How each side **asks the jury to weigh** the conflicting experts; note what's said about “reasonable doubt” |

## Three habits that make the difference

- **Write down your impressions, not only facts.** “The jury looked lost during the technical explanation” is valuable – the 10 essay used observations like this (e.g. the translation losing nuance).
- **Write immediately after each video** a three-line summary: what was proven, how, and your critical thought.
- **Don't write down everything.** If something isn't related to causation, skip it, as your professor advised.

The following pages contain a blank note sheet for each video.

## Note sheet – 1. Opening statements – 29 March 2021

Watched on: _____ Link / source: _____

| What happened (+ timestamp) | Which element / which participant | C: comparison / ?: critique |
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**Three-line summary** (what was proven · how · my critical thought):

## Note sheet – 2. Dr Martin Tobin (prosecution) – 8 April 2021

Watched on: _____ Link / source: _____

| What happened (+ timestamp) | Which element / which participant | C: comparison / ?: critique |
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**Three-line summary** (what was proven · how · my critical thought):

## Note sheet – 3. Dr Andrew Baker (medical examiner) – 9 April 2021

Watched on: _____ Link / source: _____

| What happened (+ timestamp) | Which element / which participant | C: comparison / ?: critique |
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**Three-line summary** (what was proven · how · my critical thought):

## Note sheet – 4. Dr David Fowler (defence) – 14 April 2021

Watched on: _____ Link / source: _____

| What happened (+ timestamp) | Which element / which participant | C: comparison / ?: critique |
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**Three-line summary** (what was proven · how · my critical thought):

## Note sheet – 5. Dr Tobin, rebuttal – 15 April 2021

Watched on: _____ Link / source: _____

| What happened (+ timestamp) | Which element / which participant | C: comparison / ?: critique |
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**Three-line summary** (what was proven · how · my critical thought):

## Note sheet – 6. Closing arguments – 19 April 2021

Watched on: _____ Link / source: _____

| What happened (+ timestamp) | Which element / which participant | C: comparison / ?: critique |
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**Three-line summary** (what was proven · how · my critical thought):